《實體貨幣及不記名可轉讓票據跨境流動條例》
(第 629 章)

Cross-boundary Movement of Physical Currency and Bearer Negotiable Instruments Ordinance
(Cap. 629)

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尚未實施的條文 / 修訂 ——

尚未實施的條文及修訂的資料，可於「電子版香港法例」(https://www.elegislation.gov.hk) 閱覽。

Provisions / Amendments not yet in operation —

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《實體貨幣及不記名可轉讓票據跨境流動條例》

(第 629 章)

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Cross-boundary Movement of Physical Currency and Bearer Negotiable Instruments Ordinance

(Cap. 629)

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本條例旨在設立申報及披露制度，以偵測大量實體貨幣及不記名可轉讓票據跨境流入或流出香港；訂定權力，對懷疑關乎洗錢及恐怖分子資金籌集的實體貨幣及不記名可轉讓票據，限制其流動；以及就相關事宜，訂定條文。

[2018 年 7 月 16 日] *2018 年第 54 號法律公告*

(略去制定語式條文 ——2018 年第 4 號編輯修訂紀錄)

第 1 部

導言

1. 簡稱

(編輯修訂 ——2018 年第 4 號編輯修訂紀錄)

(1) 本條例可引稱為《實體貨幣及不記名可轉讓票據跨境流動條例》。

(2) *(已失時效而略去 ——2018 年第 4 號編輯修訂紀錄)*

2. 釋義

(1) 在本條例中 ——

幼年人 (young person) 指未滿 16 歲的人；

身分證 (identity card) 具有《人事登記條例》(第 177 章) 第 1A(1) 條所給予的涵義；

指明管制站 (specified control point) 指附表 1 指明的地方；

An Ordinance to establish a declaration and disclosure system to detect the cross-boundary movement of a large quantity of physical currency and bearer negotiable instruments into or out of Hong Kong; to provide for the powers to restrain the movement of physical currency and bearer negotiable instruments suspected to be related to money laundering and terrorist financing; and to provide for related matters.

[16 July 2018] *L.N. 54 of 2018*

(Enacting provision omitted—E.R. 4 of 2018)

Part 1

Preliminary

1. Short title

(Amended E.R. 4 of 2018)

(1) This Ordinance may be cited as the Cross-boundary Movement of Physical Currency and Bearer Negotiable Instruments Ordinance.

(2) *(Omitted as spent—E.R. 4 of 2018)*

2. Interpretation

(1) In this Ordinance—

authorized officer (獲授權人員) means—

(a) a person holding an office specified in Schedule 1 to the Customs and Excise Service Ordinance (Cap. 342); or

(b) a public officer appointed under section 29(1);

旅行證件 (travel document) 具有《香港海關條例》(第 342 章) 第 2 條所給予的涵義；

參考匯價 (reference exchange rate) 指由《香港銀行公會條例》(第 364 章) 第 3 條成立為法團的香港銀行公會所公布的外匯賣出開市參考牌價；

現金類物品 (CBNI) 指 ——

(a) 在香港境內或香港境外地方，屬法定貨幣的紙幣或硬幣；或

(b) 符合以下說明的可轉讓票據 ——

(i) 屬持有人形式的可轉讓票據；

(ii) 獲無限制背書的可轉讓票據；

(iii) 開立予虛構受款人的可轉讓票據；

(iv) 按其所屬的形式，其所有權是隨交付而轉讓的可轉讓票據；或

(v) 經已簽署，但並無述明受款人姓名或名稱的可轉讓票據；

例子 ——

不記名支票、承付票、不記名債券、旅行支票、匯票及郵政票。

報價日 (rate publication day) 指有就任何貨幣公布參考匯價的日期；

報價時間 (rate publication time) 就某報價日而言，指在該日中就任何貨幣公布參考匯價的時間；

跨境運輸工具 (cross-boundary conveyance) 指在進入或離開香港的行程中使用的運輸工具，亦指將要在該行程中使用的運輸工具；

運輸工具 (conveyance) 包括飛機、車輛、船隻及任何其他交通或運輸工具；

輸入 (import) 指帶進或運進香港；

CBNI (現金類物品) means—

(a) a note, or coin, that is legal tender in Hong Kong or a place outside Hong Kong; or

(b) a negotiable instrument that is—

(i) in bearer form;

(ii) endorsed without any restriction;

(iii) made out to a fictitious payee;

(iv) in a form under which the title of it passes on delivery; or

(v) signed but does not state a payee's name;

Examples—

Bearer cheque, promissory note, bearer bond, traveller's cheque, money order and postal order.

Commissioner (關長) means the Commissioner of Customs and Excise;

conveyance (運輸工具) includes an aircraft, vehicle, vessel and any other means of travel or transport;

cross-boundary conveyance (跨境運輸工具) means a conveyance engaged, or to be engaged, on a journey entering or leaving Hong Kong;

export (輸出) means to take out of Hong Kong;

identity card (身分證) has the meaning given by section 1A(1) of the Registration of Persons Ordinance (Cap. 177);

import (輸入) means to bring into Hong Kong;

rate publication day (報價日) means a day on which the reference exchange rate for any currency is published;

輸出 (export) 指帶離或運離香港；

獲授權人員 (authorized officer) 指 ——

(a) 擔任《香港海關條例》(第 342 章) 附表 1 指明的職位的人；或

(b) 根據第 29(1) 條獲委任的公職人員；

關長 (Commissioner) 指海關關長。

(2) 就本條例而言，在以下情況下，某人即屬管有某東西 ——

(a) 該東西在該人身上；

(b) 該東西在該人的隨身行李內；或

(c) 就乘搭跨境運輸工具抵達香港 (或即將乘搭跨境運輸工具離開香港) 的人而言 ——

(i) 該東西屬該人的個人物品的一部分，並由該運輸工具運載；或

(ii) 該東西在該人的托運行李內 (不論是否由或將會由同一運輸工具運載)。

(3) 就本條例而言，凡提述大量現金類物品，即提述總價值高於附表 4 指明的款額的現金類物品。

(4) 就本條例而言，凡提述現金類物品的價值，即提述該物品的面值。

rate publication time (報價時間), in relation to a rate publication day, means the time of the day at which the reference exchange rate for any currency is published;

reference exchange rate (參考匯價) means the opening indicative counter exchange selling rate published by The Hong Kong Association of Banks incorporated by section 3 of The Hong Kong Association of Banks Ordinance (Cap. 364);

specified control point (指明管制站) means a place specified in Schedule 1;

travel document (旅行證件) has the meaning given by section 2 of the Customs and Excise Service Ordinance (Cap. 342);

young person (幼年人) means a person under the age of 16 years.

(2) For the purposes of this Ordinance, a person is in possession of a thing if—

(a) it is on the person;

(b) it is in the baggage accompanying the person; or

(c) for a person arriving in or about to leave Hong Kong on a cross-boundary conveyance—

(i) it is part of the personal belongings of the person carried on the conveyance; or

(ii) it is in the checked baggage of the person (whether or not carried, or to be carried, on the same conveyance).

(3) For the purposes of this Ordinance, a reference to a large quantity of CBNIs is a reference to CBNIs of a total value that is more than the amount specified in Schedule 4.

(4) For the purposes of this Ordinance, a reference to the value of a CBNI is a reference to the nominal value of the CBNI.

第 2 部

申報及披露

第 1 分部 —— 個人管有的現金類物品的輸入或輸出

3. 不適用於在香港國際機場過境的人

本分部不適用於符合以下說明的人 ——

(a) 純粹為了離開香港，而從香港境外地方，抵達香港國際機場；及

(b) 在香港境內時，沒有在任何指明管制站，經過出入境檢查。

4. 就抵達指明管制站的人管有的現金類物品作申報

(1) 除第 3 條另有規定外，凡任何人 (***旅客***) 從香港境外地方抵達指明管制站，而該旅客管有大量現金類物品，本條就該旅客而適用。

(2) 有關旅客須按照第 (4) 款，就有關現金類物品作出申報。

(3) 然而，如有關旅客屬由成人陪同的幼年人，而該成人知道，該旅客屬幼年人並管有大量現金類物品，則該成人須為該旅客作出有關申報。

(4) 有關申報須 ——

(a) 採用關長指明的表格，並載有附表 2 第 2 部所列的資料；及

(b) 按下述方式作出 ——

Part 2

Declaration and Disclosure

Division 1—Import or Export of CBNIs in Possession of Individuals

3. Non-application to persons in transit at Hong Kong International Airport

This Division does not apply to a person who—

(a) arrives at the Hong Kong International Airport from a place outside Hong Kong solely for the purpose of leaving Hong Kong; and

(b) while in Hong Kong, does not pass through immigration control at any specified control point.

4. Declaration for CBNIs in possession of persons arriving at specified control points

(1) Subject to section 3, this section applies in relation to a person who arrives at a specified control point from a place outside Hong Kong (***traveller***) and who is in possession of a large quantity of CBNIs.

(2) The traveller must make a declaration for the CBNIs in accordance with subsection (4).

(3) However, if the traveller is a young person accompanied by an adult who knows the traveller is a young person in possession of a large quantity of CBNIs, the adult must make the declaration for the traveller.

(4) The declaration must—

(i) 於有關旅客經過在有關指明管制站內撥供香港海關使用的範圍時，將該表格交給獲授權人員；或

(ii) 如有關旅客無需經過該範圍 —— 在有關指明管制站，將該表格交給獲授權人員。

(5) 如 ——

(a) 有關旅客 ——

(i) 並非幼年人；或

(ii) 屬並無任何符合以下說明的成人陪同的幼年人：該成人知道，該旅客屬幼年人並管有大量現金類物品；及

(b) 該旅客不遵守第 (2) 款，

該旅客即屬犯罪。

(6) 如 ——

(a) 有關旅客屬幼年人，並由一名或多於一名成人陪同，而該等成人知道，該旅客屬幼年人並管有大量現金類物品；及

(b) 沒有申報根據第 (3) 款作出，

則每名陪同該旅客和知道該旅客屬幼年人並管有大量現金類物品的成人，即屬犯罪。

(7) 如任何人為本條的目的作出申報，而該申報載有任何在要項上屬虛假的資料，該人即屬犯罪。

(8) 任何人犯第 (5)、(6) 或 (7) 款所訂罪行，一經定罪，可處罰款 $500,000 及監禁 2 年。

(9) 被控犯第 (5) 款所訂罪行的人，如證明在指稱的罪行發生時，自己並不知道，亦無理由懷疑，且即使作出合理努力亦不能確定，自己管有大量現金類物品，即為免責辯護。*（由 2020 年第 21 號第 45 條修訂）*

(a) be in a form specified by the Commissioner containing the information set out in Part 2 of Schedule 2; and

(b) be made—

(i) by giving the form to an authorized officer when the traveller is passing through an area set aside for the purposes of the Customs and Excise Service at the specified control point; or

(ii) if the traveller does not have to pass through such an area—by giving the form to an authorized officer at the specified control point.

(5) If—

(a) the traveller is—

(i) not a young person; or

(ii) a young person who is not accompanied by any adult who knows the traveller is a young person in possession of a large quantity of CBNIs; and

(b) the traveller fails to comply with subsection (2),

the traveller commits an offence.

(6) If—

(a) the traveller is a young person accompanied by one or more adult who knows the traveller is a young person in possession of a large quantity of CBNIs; and

(b) no declaration is made under subsection (3),

each accompanying adult who knows the traveller is a young person in possession of a large quantity of CBNIs commits an offence.

(7) If a declaration made for the purposes of this section contains any information that is false in a material particular, the person who makes the declaration commits an offence.

(10) 被控犯第 (7) 款所訂罪行的人，如證明在指稱的罪行發生時，自己並不知道，亦無理由懷疑，且即使作出合理努力亦不能確定，有關資料在要項上屬虛假，即為免責辯護。*(由 2020 年第 21 號第 45 條修訂)*

5. 在指明管制站以外地方抵達香港的人，及即將離開香港的人，須作披露

(1) 除第 3 條另有規定外，本條就以下人士而適用 ——

(a) 從香港境外地方抵達香港 (指明管制站除外) 的人；及

(b) 即將離開香港的人。

(2) 獲授權人員 ——

(a) 可要求上述的人，披露該人是否管有大量現金類物品；及

(b) 如該人屬幼年人 —— 可要求陪同該人的成人，披露該幼年人是否管有大量現金類物品。

(3) 任何人不遵從第 (2)(a) 款所指的要求，即屬犯罪。

(4) 凡陪同某人的成人知道，該人屬幼年人並管有大量現金類物品，該成人如不遵從第 (2)(b) 款所指的要求，即屬犯罪。

(8) A person who commits an offence under subsection (5), (6) or (7) is liable on conviction to a fine of $500,000 and to imprisonment for 2 years.

(9) It is a defence for a person charged under subsection (5) if the person establishes that at the time of the alleged offence the person did not know, had no reason to suspect, and could not with reasonable diligence have ascertained, that the person was in possession of a large quantity of CBNIs.

(10) It is a defence for a person charged under subsection (7) if the person establishes that at the time of the alleged offence the person did not know, had no reason to suspect, and could not with reasonable diligence have ascertained, that the information concerned was false in a material particular.

5. Disclosure by persons arriving in Hong Kong other than at specified control points and persons about to leave Hong Kong

(1) Subject to section 3, this section applies in relation to—

(a) a person who arrives in Hong Kong (other than at a specified control point) from a place outside Hong Kong; and

(b) a person who is about to leave Hong Kong.

(2) An authorized officer—

(a) may require the person to disclose whether the person is in possession of a large quantity of CBNIs; and

(b) if the person is a young person—may require an adult accompanying the person to disclose whether the person is in possession of a large quantity of CBNIs.

(3) A person who fails to comply with a requirement under subsection (2)(a) commits an offence.

(5) 任何人如虛假地披露該人或有關幼年人並無管有大量現金類物品，充作遵從第 (2) 款所指的要求，即屬犯罪。

(6) 任何人犯第 (3)、(4) 或 (5) 款所訂罪行，一經定罪，可處罰款 $500,000 及監禁 2 年。

(7) 被控犯第 (5) 款所訂罪行的人，如證明在指稱的罪行發生時，自己並不知道，亦無理由懷疑，且即使作出合理努力亦不能確定，自己或有關幼年人管有大量現金類物品，即為免責辯護。*(由 2020 年第 21 號第 46 條修訂)*

6. 根據第 5 條作披露的人須作申報

(1) 凡某人遵從獲授權人員根據第 5(2) 條提出的要求，作出披露，而 ——

(a) 該人或有關幼年人，管有大量現金類物品；及

(b) 該人披露此事實，

本條就該人而適用。

(2) 上述的人須按照第 (3) 款，就有關現金類物品作出申報。

(3) 有關申報 ——

(a) 須採用關長指明的表格，並載有附表 2 第 2 部所列的資料；及

(b) 的作出方式，是將該表格交給有關獲授權人員。

(4) 任何人不遵守第 (2) 款，即屬犯罪。

(4) An adult accompanying a person who knows the person is a young person in possession of a large quantity of CBNIs commits an offence if the adult fails to comply with a requirement under subsection (2)(b).

(5) A person who, in purported compliance with a requirement under subsection (2), falsely discloses that the person or the young person is not in possession of a large quantity of CBNIs commits an offence.

(6) A person who commits an offence under subsection (3), (4) or (5) is liable on conviction to a fine of $500,000 and to imprisonment for 2 years.

(7) It is a defence for a person charged under subsection (5) if the person establishes that at the time of the alleged offence the person did not know, had no reason to suspect, and could not with reasonable diligence have ascertained, that the person or the young person was in possession of a large quantity of CBNIs.

6. Declaration by persons making disclosure under section 5

(1) This section applies in relation to a person who makes a disclosure in compliance with a requirement made by an authorized officer under section 5(2) if—

(a) the person or the young person concerned is in possession of a large quantity of CBNIs; and

(b) the person discloses that fact.

(2) The person must make a declaration for the CBNIs in accordance with subsection (3).

(3) The declaration must—

(a) be in a form specified by the Commissioner containing the information set out in Part 2 of Schedule 2; and

(5) 如任何人為本條的目的作出申報，而該申報載有任何在要項上屬虛假的資料，該人即屬犯罪。

(6) 任何人犯第 (4) 或 (5) 款所訂罪行，一經定罪，可處罰款 $500,000 及監禁 2 年。

(7) 被控犯第 (5) 款所訂罪行的人，如證明在指稱的罪行發生時，自己並不知道，亦無理由懷疑，且即使作出合理努力亦不能確定，有關資料在要項上屬虛假，即為免責辯護。*（由 2020 年第 21 號第 47 條修訂）*

7. 釐定並非以港元計值的現金類物品的價值

(1) 為施行本分部，如任何人在有關事件發生時管有的現金類物品，是以港元以外的貨幣計值，則該物品的港元等值，須按照本條計算。

(2) 除第 (3) 款另有規定外，有關港元等值，須按照在有關事件的日期就有關貨幣公布的參考匯價，予以計算。

(3) 如有關事件的日期並非報價日，或如有關事件在報價日的報價時間前發生，則有關港元等值，須按照在緊接的上一個報價日就有關貨幣公布的參考匯價，予以計算。

(4) 然而，如有關港元等值，不能夠根據第 (2) 或 (3) 款計算，則該港元等值須 ——

(a) 按照由關長藉憲報公告指明的國際認可機構就有關貨幣公布的匯價，並以該公告指明的方式，予以計算；或

(b) be made by giving the form to the authorized officer.

(4) A person who fails to comply with subsection (2) commits an offence.

(5) If a declaration made for the purposes of this section contains any information that is false in a material particular, the person who makes the declaration commits an offence.

(6) A person who commits an offence under subsection (4) or (5) is liable on conviction to a fine of $500,000 and to imprisonment for 2 years.

(7) It is a defence for a person charged under subsection (5) if the person establishes that at the time of the alleged offence the person did not know, had no reason to suspect, and could not with reasonable diligence have ascertained, that the information concerned was false in a material particular.

7. Determining value of CBNIs not denominated in Hong Kong dollars

(1) For the purposes of this Division, if a CBNI in the possession of a person at the time of a relevant event is denominated in a currency other than Hong Kong dollars, its equivalent value in Hong Kong dollars must be calculated in accordance with this section.

(2) Subject to subsection (3), the equivalent value in Hong Kong dollars must be calculated at the reference exchange rate for the currency published on the day of the relevant event.

(3) If the day of the relevant event is not a rate publication day, or the relevant event occurs before the rate publication time of a rate publication day, the equivalent value in Hong Kong dollars must be calculated at the reference exchange rate for the currency published on the immediately preceding rate publication day.

(b) 如並無上述匯價就該貨幣而提供 —— 按照在有關事件發生時，管有有關現金類物品的人通常會就該貨幣採用的匯價，予以計算。

(5) 第 (4)(a) 款所指的公告，並非附屬法例。

(6) 在本條中 ——

有關事件 (relevant event) ——

(a) 凡為施行第 4 條而作計算 —— 指有關的人抵達有關指明管制站；或

(b) 凡為施行第 5 或 6 條而作計算 —— 指獲授權人員要求有關的人 (或陪同該人的成人) 根據第 5(2) 條作出披露。

第 2 分部 —— 在其他情況下輸入或輸出現金類物品

8. 本分部適用的現金類物品

凡現金類物品在本條例生效日期或之後，在跨境運輸工具上輸入或輸出，本分部就該等物品而適用，但以下現金類物品除外 ——

(a) 乘搭該運輸工具抵達香港 (或即將乘搭該運輸工具離開香港) 的人管有的現金類物品；

(4) However, if the equivalent value in Hong Kong dollars is not capable of being calculated under subsection (2) or (3), the equivalent value in Hong Kong dollars must be calculated—

(a) by reference to an exchange rate for the currency published by an internationally recognized institution specified by the Commissioner by notice published in the Gazette and in the way specified in the notice; or

(b) if no such exchange rate for the currency is available—at an exchange rate that the person in possession of the CBNI would ordinarily use for the currency at the time when the relevant event occurs.

(5) A notice under subsection (4)(a) is not subsidiary legislation.

(6) In this section—

relevant event (有關事件)—

(a) for a calculation made for the purposes of section 4—means the person arrives at the specified control point concerned; or

(b) for a calculation made for the purposes of section 5 or 6—means the person, or an adult accompanying the person, is required by an authorized officer to make a disclosure under section 5(2).

Division 2—Other Import or Export of CBNIs

8. CBNIs to which this Division applies

This Division applies in relation to CBNIs imported or exported on or after the commencement date of this Ordinance on a cross-boundary conveyance except—

(a) CBNIs in the possession of a person arriving in or about to leave Hong Kong on the conveyance;

(b) 符合以下說明的現金類物品 ——

(i) 在飛機或船隻上輸入，而輸入的唯一目的，是為了將該等物品在該飛機或該船隻上輸出；及

(ii) 在香港境內時，一直留在該飛機或該船隻上；

(c) 屬《進出口條例》(第 60 章) 第 2 條所指的航空轉運貨物的現金類物品；及

(d) 《郵政署條例》(第 98 章) 第 2 條所指的郵包所載的現金類物品。

9. 現金類物品的輸入者或輸出者須作申報

(1) 如任何人輸入或輸出 (或安排輸入或輸出) 屬同一批次的大量現金類物品，而沒有申報按照第 11 條就該等物品作出，該人即屬犯罪。

附註 ——

屬同一批次的涵義，參閱第 10 條。

(2) 如任何人掌管輸入或輸出現金類物品的跨境運輸工具，而該人除掌管該運輸工具外，並不就該等物品的輸入或輸出負有其他責任，則第 (1) 款不適用於該人。

(3) 如任何人為本條的目的，按照第 11 條，就輸入或輸出現金類物品作出申報，或安排如此就輸入或輸出現金類物品作出申報，而該申報載有任何在要項上屬虛假的資料，該人即屬犯罪。

(4) 任何人犯第 (1) 或 (3) 款所訂罪行，一經定罪，可處罰款 $500,000 及監禁 2 年。

(5) 被控犯第 (1) 款所訂罪行的人，如證明在指稱的罪行發生時，自己並不知道，亦無理由懷疑，且即使作出合理努力亦不能確定 —— *(由 2020 年第 21 號第 48 條修訂)*

(b) CBNIs—

(i) that are imported on an aircraft or vessel solely for the purpose of exporting them on the aircraft or vessel; and

(ii) that, while in Hong Kong, remain at all times on the aircraft or vessel;

(c) CBNIs that are air transhipment cargo within the meaning of section 2 of the Import and Export Ordinance (Cap. 60); and

(d) CBNIs contained in a postal packet within the meaning of section 2 of the Post Office Ordinance (Cap. 98).

9. Declaration by importers or exporters of CBNIs

(1) A person commits an offence if the person imports or exports, or causes to be imported or exported, in one batch a large quantity of CBNIs for which no declaration has been made in accordance with section 11.

Note—

See section 10 for the meaning of ***in one batch***.

(2) Subsection (1) does not apply to a person who is in charge of a cross-boundary conveyance on which CBNIs are imported or exported if the person is not otherwise responsible for importing or exporting the CBNIs.

(3) A person who makes, or causes to be made, a declaration in accordance with section 11 for the import or export of CBNIs for the purposes of this section commits an offence if the declaration contains any information that is false in a material particular.

(a) 有關現金類物品屬大量；或

(b) 沒有申報按照第 11 條就有關現金類物品作出，

即為免責辯護。

(6) 被控犯第 (3) 款所訂罪行的人，如證明在指稱的罪行發生時，自己並不知道，亦無理由懷疑，且即使作出合理努力亦不能確定，有關資料在要項上屬虛假，即為免責辯護。*(由 2020 年第 21 號第 48 條修訂)*

10. *屬同一批次*的涵義

(1) 就本分部而言，所有由個別的人 (承運人除外) 在某一跨境運輸工具上輸入或輸出的現金類物品，視作屬同一批次而輸入或輸出。

(2) 就本分部而言，所有由同一承運人為同一客戶在某一跨境運輸工具上輸入或輸出的現金類物品，視作屬同一批次而輸入或輸出。

(3) 就第 (2) 款而言 ——

(a) 只有 ——

(i) 由客戶直接聘用承運人輸入或輸出的現金類物品；或

(ii) 符合以下說明的現金類物品：由客戶直接聘用另一人 (***代運人***) 在該代運人的物流服務業務的過程中，為有關承運人輸入或輸出該物品的

(4) A person who commits an offence under subsection (1) or (3) is liable on conviction to a fine of $500,000 and to imprisonment for 2 years.

(5) It is a defence for a person charged under subsection (1) if the person establishes that at the time of the alleged offence the person did not know, had no reason to suspect, and could not with reasonable diligence have ascertained, that—

(a) the CBNIs concerned were of a large quantity; or

(b) no declaration for the CBNIs had been made in accordance with section 11.

(6) It is a defence for a person charged under subsection (3) if the person establishes that at the time of the alleged offence the person did not know, had no reason to suspect, and could not with reasonable diligence have ascertained, that the information concerned was false in a material particular.

10. Meaning of *in one batch*

(1) For the purposes of this Division, all CBNIs imported, or exported, on a cross-boundary conveyance by a particular person (other than a carrier) are taken to be imported, or exported, in one batch.

(2) For the purposes of this Division, all CBNIs imported, or exported, on a cross-boundary conveyance by the same carrier for the same customer are taken to be imported, or exported, in one batch.

(3) For subsection (2)—

(a) a CBNI is imported, or exported, by a carrier for a customer only if—

(i) the customer directly engages the carrier to import, or export, the CBNI; or

目的，向該承運人運送該物品，或安排如此向該承運人運送該物品，

方視作由該承運人為該客户輸入或輸出；及

(b) 如客户直接聘用多於一名 (a)(ii) 段所述的代運人，則只有由同一代運人向同一承運人運送的現金類物品，或由同一代運人安排向同一承運人運送的現金類物品，方視作由同一承運人為同一客户輸入或輸出。

(4) 在本條中 ——

承運人 (carrier) 指在經營物流服務業務的過程中行事的人；

物流服務業務 (logistics service business) 指為其他人運送，或安排為其他人運送貨品的業務；

客户 (customer) 指並非承運人的人。

11. 申報的規定

(1) 第 9(1) 條規定作出的申報，須藉以下方式作出 ——

(a) 將列於附表 3 第 2 部的資料，藉電子紀錄形式，傳送至關長指定的資訊系統；或

(b) 以根據第 (2) 款指明的方式，提供該資料。

(2) 關長如認為，按照第 (1)(a) 款傳送附表 3 第 2 部所列的資料，並非切實可行，則可指明提供該資料所須使用的方式。

(3) 關長在作出指定或指明後，須在切實可行的範圍內，盡快以關長認為適當的方式，公布該項指定或指明的細節。

(ii) the customer directly engages another person (***forwarder***) who, in the course of the forwarder's logistics service business, transports, or arranges for the transportation of, the CBNI to the carrier for the carrier to import, or export, the CBNI; and

(b) if the customer directly engages more than one forwarder as mentioned in paragraph (a)(ii), only CBNIs transported to the same carrier, or the transport of which to the same carrier is arranged, by the same forwarder are taken to be imported, or exported, by the same carrier for the same customer.

(4) In this section—

carrier (承運人) means a person acting in the course of carrying on a logistics service business;

customer (客户) means a person who is not a carrier;

logistics service business (物流服務業務) means a business of transporting, or arranging for the transportation of, goods for other persons.

11. Declaration requirement

(1) A declaration required by section 9(1) must be made—

(a) by sending the information set out in Part 2 of Schedule 3 in the form of an electronic record to an information system designated by the Commissioner; or

(b) by giving the information in the way specified under subsection (2).

(2) The Commissioner may specify the way in which the information set out in Part 2 of Schedule 3 is to be given if the Commissioner considers that sending the information in accordance with subsection (1)(a) is not practicable.

(4) 凡有資料傳送至指定資訊系統，而該系統產生檔案編號，顯示該資料已被該系統接收，則有關申報視作在該編號產生時作出。

12. 釐定並非以港元計值的現金類物品的價值

(1) 為施行本分部，如輸入或輸出的現金類物品，是以港元以外的貨幣計值，則該物品的港元等值，須按照本條計算。

(2) 除第 (3) 款另有規定外，凡有關現金類物品在某月份輸入或輸出，其港元等值須按照在對上一個月的第 15 日 (***參考日***) 就有關貨幣公布的參考匯價，予以計算。

(3) 如參考日並非報價日，則有關港元等值，須按照在緊接的上一個報價日就有關貨幣公布的參考匯價，予以計算。

(4) 然而，如有關港元等值，不能夠根據第 (2) 或 (3) 款計算，則該港元等值須 ——

(a) 按照由關長藉憲報公告指明的國際認可機構就有關貨幣公布的匯價，並以該公告指明的方式，予以計算；或

(b) 如並無上述匯價就該貨幣提供 —— 按照在參考日，負責輸入或輸出有關現金類物品的人通常會就該貨幣採用的匯價，予以計算。

(5) 第 (4)(a) 款所指的公告，並非附屬法例。

(6) 就第 (4) 款而言，負責輸入或輸出現金類物品的人指 ——

(a) 如該物品是由並非第 10 條所指的承運人的人輸入或輸出 —— 該人；或

(3) The Commissioner must, as soon as practicable after making a designation or specification, publish the details of the designation or specification in a way that the Commissioner considers appropriate.

(4) If information is sent to a designated information system, the declaration is taken to have been made at the time when a reference number is generated by the system indicating acceptance of the information by the system.

12. Determining value of CBNIs not denominated in Hong Kong dollars

(1) For the purposes of this Division, if a CBNI imported or exported is denominated in a currency other than Hong Kong dollars, its equivalent value in Hong Kong dollars must be calculated in accordance with this section.

(2) Subject to subsection (3), the equivalent value in Hong Kong dollars must be calculated at the reference exchange rate for the currency published on the 15th day of the month preceding the month in which the CBNI is imported or exported (***reference day***).

(3) If the reference day is not a rate publication day, the equivalent value in Hong Kong dollars must be calculated at the reference exchange rate for the currency published on the immediately preceding rate publication day.

(4) However, if the equivalent value in Hong Kong dollars is not capable of being calculated under subsection (2) or (3), the equivalent value in Hong Kong dollars must be calculated—

(a) by reference to an exchange rate for the currency published by an internationally recognized institution specified by the Commissioner by notice published in the Gazette and in the way specified in the notice; or

(b) 如該物品是由第 10 條所指的承運人，為第 10 條所指的客户輸入或輸出 —— 該客户。

第 3 分部 —— 處理某些罪行的程序及相關事宜

13. 關於在付款後不提起刑事法律程序的書面通知

(1) 關長如有理由相信，某人犯了附表 5 第 2 欄指明的罪行 (***指明罪行***)，則可給予該人述明以下各項的書面通知 ——

(a) 該人的全名；

(b) 該人的身分證或 (如該人無身分證) 任何旅行證件的號碼；

(c) 關長相信該人所犯的罪行 (***涉嫌罪行***) 的詳情；

(d) 有關現金類物品的種類，以及其價值；

(e) 該指明罪行可處的最高刑罰；

(f) 以下事項 ——

(i) 如該人在關長指明的合理時間 (***指明時間***) 內，向關長繳付附表 5 第 3 欄中與該指明罪行相對

(b) if no such exchange rate for the currency is available—at an exchange rate that the person responsible for the import or export of the CBNI would ordinarily use for the currency on the reference day.

(5) A notice under subsection (4)(a) is not subsidiary legislation.

(6) For the purposes of subsection (4), a person responsible for the import or export of a CBNI is—

(a) if the CBNI is imported or exported by a person who is not a carrier within the meaning of section 10—the person; or

(b) if the CBNI is imported or exported by a carrier, for a customer, within the meaning of section 10—the customer.

Division 3—Procedure for Handling Certain Offences and Related Matters

13. Written notice about not instituting criminal proceedings on payment

(1) If the Commissioner has reason to believe that a person has committed an offence specified in column 2 of Schedule 5 (***specified offence***), the Commissioner may give the person a written notice stating—

(a) the full name of the person;

(b) the number of the identity card or, if the person does not have an identity card, the number of any travel document, of the person;

(c) the particulars of the offence that the Commissioner believes the person has committed (***suspected offence***);

(d) the type of the CBNIs concerned and their value;

之處指明的款額 (***指明款額***)，則不會就該涉嫌罪行，針對該人提起刑事法律程序；或

(ii) 如該人沒有在指明時間內，繳付指明款額，則可能就該涉嫌罪行，針對該人提起刑事法律程序，而該人如被定罪，便可被處以就該罪行訂明的刑罰；

(g) 如該人在指明時間內，繳付指明款額，則在該人日後犯本條例所訂罪行時，關於該涉嫌罪行已根據本條處理的紀錄，可能會提交法院或裁判官；及

(h) 關長認為適當的任何其他資料。

(2) 在以下情況下，第 (1) 款不適用 ——

(a) 有關的人曾被裁定犯第 4、5、6 或 9 條所訂罪行；

(b) 根據第 14 條備存的登記冊內，載有關於該人的紀錄；

(c) 該人曾被裁定犯以下條文所訂罪行 ——

(i) 《販毒 (追討得益) 條例》(第 405 章) 第 25 或 25A 條；

(ii) 《有組織及嚴重罪行條例》(第 455 章) 第 25 或 25A 條；或

(iii) 《聯合國 (反恐怖主義措施) 條例》(第 575 章) 第 14(1)、(2)、(4)、(5) 或 (6) 條；或

(d) 有關現金類物品已根據第 17 條檢取。

(3) 如有關的人在指明時間內，向關長繳付指明款額，則 ——

(a) 不得就有關涉嫌罪行，針對該人提起刑事法律程序；及

(b) 在不影響第 3 部賦予關長的權力的原則下，任何在與該涉嫌罪行相關的情況下檢取的現金類物品，均須歸還該人。

(e) the maximum penalty for the specified offence;

(f) that—

(i) if the person pays to the Commissioner the amount specified in column 3 of Schedule 5 opposite the specified offence (***specified amount***) within a reasonable time specified by the Commissioner (***specified time***), no criminal proceedings for the suspected offence will be instituted against the person; or

(ii) if the person does not pay the specified amount within the specified time, criminal proceedings for the suspected offence may be instituted against the person and the person will, if convicted, be liable to the penalty for the offence;

(g) that, if the person pays the specified amount within the specified time, a record that the suspected offence has been handled under this section may be brought to the attention of a court or magistrate in the event of future offences under this Ordinance committed by the person; and

(h) any other information that the Commissioner considers appropriate.

(2) Subsection (1) does not apply if—

(a) the person has previously been convicted of an offence under section 4, 5, 6 or 9;

(b) the register maintained under section 14 contains a record of the person;

(c) the person has previously been convicted of an offence against—

14. 繳付指明款額的人的紀錄的登記冊

(1) 關長須就已繳付第 13(1)(f)(i) 條所述的款額的人，備存該等人士的紀錄的登記冊。

(2) 關長須就每名上述的人，安排在有關登記冊內記入 ——

(a) 該人的全名；

(b) 該人的身分證或 (如該人並無身分證) 任何旅行證件的號碼；

(c) 該人獲發第 13(1) 條所指的通知的日期；

(d) 繳付款額的日期；及

(e) 關長認為適當的任何其他資料。

(i) section 25 or 25A of the Drug Trafficking (Recovery of Proceeds) Ordinance (Cap. 405);

(ii) section 25 or 25A of the Organized and Serious Crimes Ordinance (Cap. 455); or

(iii) section 14(1), (2), (4), (5) or (6) of the United Nations (Anti-Terrorism Measures) Ordinance (Cap. 575); or

(d) the CBNIs concerned have been seized under section 17.

(3) If the person pays to the Commissioner the specified amount within the specified time—

(a) no criminal proceedings for the suspected offence may be instituted against the person; and

(b) without affecting the powers of the Commissioner under Part 3, any CBNIs seized in connection with the suspected offence must be returned to the person.

14. Register of records of persons paying specified amount

(1) The Commissioner must maintain a register of records of persons who have made a payment mentioned in section 13(1)(f)(i).

(2) The Commissioner must, for each person, arrange to be entered in the register—

(a) the full name of the person;

(b) the number of the identity card or, if the person does not have an identity card, the number of any travel document, of the person;

(c) the date on which the notice under section 13(1) was given;

(d) the date on which the payment was made; and

15. 根據第 13 條處理的涉嫌罪行，可列入考慮

(1) 如 ——

(a) 任何人被裁定犯第 4、5、6 或 9 條所訂罪行；及

(b) 根據第 14 條備存的登記冊內，載有關於該人的紀錄，

則法院或裁判官可為了決定對該人判刑，考慮該紀錄。

(2) 為施行第 (1) 款，關長可發出證明書，述明按根據第 14 條備存的登記冊 ——

(a) 姓名如在該證明書指明並持有該證明書指明的身分證或旅行證件的人，在該證明書所列的日期，獲發第 13(1) 條所指的通知；及

(b) 該人在該證明書所列的日期，繳付第 13(1)(f)(i) 條所述的款額。

(3) 看來是根據第 (2) 款發出的證明書，是該證明書述明的事宜的充分證據。

(e) any other information that the Commissioner considers appropriate.

15. Suspected offence handled under section 13 may be taken into account

(1) If—

(a) a person is convicted of an offence under section 4, 5, 6 or 9; and

(b) the register maintained under section 14 contains a record of the person,

the court or magistrate may, in determining the sentence to be passed on the person, take the record into account.

(2) For the purposes of subsection (1), the Commissioner may issue a certificate stating that, according to the register maintained under section 14—

(a) a person of the name, and holding the identity card or travel document, specified in the certificate was given a notice under section 13(1) on the date set out in the certificate; and

(b) the person made a payment mentioned in section 13(1)(f)(i) on the date set out in the certificate.

(3) A certificate purporting to be issued under subsection (2) is sufficient evidence of the matters stated in the certificate.

第 3 部

偵測和限制現金類物品流動的權力

16. 截停和搜查等的權力

(1) 獲授權人員可為了執行該人員在本條例之下的職能，行使任何或所有以下權力 ——

(a) 截停和搜查抵達或即將離開香港的人，以及檢查該人管有的任何東西；

(b) 截停、登上和搜查跨境運輸工具，以及檢查在該運輸工具上的任何東西；

(c) 要求抵達或即將離開香港的人，或在跨境運輸工具上的人 ——

(i) 出示該人的身分證或旅行證件，以供查閱；及

(ii) 凡該人員認為，為確定第 2 部有否遭違反，有必要提出某問題 —— 回答該問題；

(d) 如任何貨物在輸出前，儲存於任何地方，或於輸入後而在收貨人提貨之前或當時，儲存於任何地方 —— 在該地方檢查該貨物。

(2) 凡任何東西符合以下說明，獲授權人員均可將之檢取和扣留 ——

(a) 因為行使第 (1) 款所指的權力，以致發現該東西；及

(b) 該人員合理地懷疑，該東西與違反第 2 部相關。

(3) 凡獲授權人員為了行使第 (1) 或 (2) 款所指的權力，有合理需要使用任何武力，該人員即可使用有關武力。

Part 3

Powers to Detect and Restrain Movement of CBNIs

16. Powers to stop and search etc.

(1) An authorized officer may exercise any or all of the following powers for the purpose of performing the officer's functions under this Ordinance—

(a) stop and search a person arriving in or about to leave Hong Kong and examine anything in the person's possession;

(b) stop, board and search a cross-boundary conveyance and examine anything on the conveyance;

(c) require a person arriving in or about to leave Hong Kong or a person on board a cross-boundary conveyance—

(i) to produce the person's identity card or travel document for inspection; and

(ii) to answer any question the officer considers necessary to ascertain whether there has been any contravention of Part 2;

(d) if any cargo is stored at any place before being exported, or after having been imported and before or at the time of its collection by the consignee—examine the cargo at the place.

(2) An authorized officer may seize and detain anything that—

(a) is found as a result of the exercise of a power under subsection (1); and

(b) the officer reasonably suspects to be connected with a contravention of Part 2.

17. 懷疑屬犯罪得益或恐怖分子財產的現金類物品：檢取及扣留

(1) 除根據第 16(2) 條賦予的權力外，凡獲授權人員因為行使第 16(1) 條所指的權力，以致發現任何現金類物品，該人員如合理地懷疑，該等物品屬以下財產，則可檢取任何該等物品 ——

(a) 《有組織及嚴重罪行條例》(第 455 章) 第 25(1) 條所述的、代表從可公訴罪行的得益的財產；或

(b) 《聯合國 (反恐怖主義措施) 條例》(第 575 章) 第 2(1) 條所指的恐怖分子財產。

(2) 除第 18 及 19 條另有規定外，獲授權人員可扣留有關現金類物品，惟扣留期間不得超過檢取日期後的 10 個工作日。

(3) 凡獲授權人員為了行使第 (1) 或 (2) 款所指的權力，有合理需要使用任何武力，該人員即可使用有關武力。

(4) 在本條中 ——

工作日 (working day) 指並非以下日子的日子 ——

(a) 公眾假期或星期六；或

(b) 《釋義及通則條例》(第 1 章) 第 71(2) 條所界定的黑色暴雨警告日或烈風警告日。

18. 根據法院命令，將懷疑屬犯罪得益的現金類物品繼續扣留

(1) 獲授權人員可在第 17(2) 條所述的期間內，向法院申請命令，以授權將該人員合理地懷疑屬第 17(1)(a) 條所述的財

(3) An authorized officer may use any force reasonably necessary for exercising a power under subsection (1) or (2).

17. Seizure and detention of CBNIs suspected to be crime proceeds or terrorist property

(1) In addition to the power conferred under section 16(2), an authorized officer may seize any CBNIs found as a result of the exercise of a power under section 16(1) if the officer reasonably suspects the CBNIs to be—

(a) property representing the proceeds of an indictable offence mentioned in section 25(1) of the Organized and Serious Crimes Ordinance (Cap. 455); or

(b) terrorist property within the meaning of section 2(1) of the United Nations (Anti-Terrorism Measures) Ordinance (Cap. 575).

(2) Subject to sections 18 and 19, an authorized officer may detain the CBNIs for a period of not more than 10 working days after the day of seizure.

(3) An authorized officer may use any force reasonably necessary for exercising a power under subsection (1) or (2).

(4) In this section—

working day (工作日) means a day that is not—

(a) a general holiday or a Saturday; or

(b) a black rainstorm warning day or gale warning day as defined by section 71(2) of the Interpretation and General Clauses Ordinance (Cap. 1).

18. Continued detention of CBNIs suspected to be crime proceeds by court order

(1) An authorized officer may, within the period mentioned in

產的現金類物品，繼續扣留。

(2) 法院如信納有以下情況，則可作出有關命令 ——

(a) 有合理理由懷疑，有關現金類物品屬《有組織及嚴重罪行條例》(第 455 章) 第 25(1) 條所述的、代表從可公訴罪行的得益的財產；及

(b) 在以下行動進行期間，扣留該等物品是有理可據的 ——

(i) 對該等物品的來源或如何獲得該等物品，作進一步調查；

(ii) 考慮就與該等物品相關的罪行，針對某人提起法律程序 (不論該程序是在香港或其他地方提起)；或

(iii) 考慮提起可導致該等物品被沒收或充公的法律程序 (不論該程序是在香港或其他地方提起)。

(3) 根據第 (2) 款作出的命令，可授權在該命令指明的期間內，繼續扣留有關現金類物品，而該期間不得超過自該命令的日期起計的 3 個月。

(4) 凡獲授權人員提出申請，法院如信納第 (2) 款所述的情況繼續存在，則可應有關申請，藉命令 (***新命令***) ——

(a) 將根據第 (2) 款作出的命令所指明的期間延長，延長期須在新命令中指明；或

(b) 將根據本款延長的期間進一步延長，延長期須在新命令中指明。

(5) 新命令 ——

(a) 指明的期間，不得超過自該命令的日期起計的 3 個月；及

(b) 不得致使有關現金類物品的總扣留期間，超過自根據第 (2) 款作出的命令的日期起計的 2 年。

section 17(2), apply to the Court for an order to authorize the continued detention of CBNIs the officer reasonably suspects to be property mentioned in section 17(1)(a).

(2) The Court may make the order if it is satisfied that—

(a) there are reasonable grounds for suspecting that the CBNIs are property representing the proceeds of an indictable offence mentioned in section 25(1) of the Organized and Serious Crimes Ordinance (Cap. 455); and

(b) the detention of the CBNIs is justified while—

(i) their origin or derivation is further investigated;

(ii) consideration is given to the institution (whether in Hong Kong or elsewhere) of proceedings against a person for an offence with which the CBNIs are connected; or

(iii) consideration is given to the institution (whether in Hong Kong or elsewhere) of proceedings which may result in the forfeiture or confiscation of the CBNIs.

(3) An order made under subsection (2) may authorize the continued detention of the CBNIs for a period specified in the order. The period must not exceed 3 months beginning on the date of the order.

(4) On an application made by an authorized officer, the Court, if satisfied that the conditions mentioned in subsection (2) continue to exist, may by order (***new order***)—

(a) extend the period specified in an order made under subsection (2) for a period specified in the new order; or

(b) further extend a period extended under this subsection for a period specified in the new order.

(6) 凡有現金類物品，按根據本條作出的命令被扣留，在扣留該等物品的任何時間，如有以下情況，法院可指示將該等物品，發還予該等物品的關係人或 (如有多於一名該等關係人) 其中任何一名關係人 ——

(a) 法院應該等物品的關係人提出的申請而信納，扣留該等物品的情況不存在或不再存在；或

(b) 法院應獲授權人員提出的申請而信納，再無理據扣留該等物品。

(7) 在本條中 ——

法院 (Court) 指原訟法庭或區域法院；

關係人 (interested person) 就現金類物品而言，指 ——

(a) 如該物品是從某人處檢取的 —— 該人；

(b) 輸入或輸出該物品的人，或由他人代為輸入或輸出該物品的人；或

(c) 在其他方面對該物品有權益的人。

19. 扣留懷疑屬犯罪得益的現金類物品：進一步條文

如有現金類物品，根據第 17(2) 條被扣留，或按根據第 18 條作出的命令被扣留，而在扣留該等物品的任何時間，有以下

(5) A new order must not—

(a) specify a period exceeding 3 months beginning on the date of the order; and

(b) result in the total period of the detention of the CBNIs exceeding 2 years beginning on the date of the order made under subsection (2).

(6) At any time while CBNIs are being detained under an order made under this section, the Court may direct their return to an interested person in relation to the CBNIs or, if there is more than one such interested person, any one of them, if—

(a) the Court is satisfied on an application made by an interested person in relation to the CBNIs that the conditions for their detention do not, or no longer, exist; or

(b) the Court is satisfied on an application made by an authorized officer that their detention is no longer justified.

(7) In this section—

Court (法院) means the Court of First Instance or the District Court;

interested person (關係人), in relation to any CBNI, means—

(a) the person from whom it was seized;

(b) a person by whom or on whose behalf it was imported or exported; or

(c) a person who otherwise has an interest in it.

19. Further provisions on detention of CBNIs suspected to be crime proceeds

If, at any time while CBNIs are being detained under section 17(2) or an order made under section 18, any of the following

任何法律程序提起，則在該程序結束前，該等物品可予繼續扣留 ——

(a) 就與該等物品相關的罪行，針對某人提起的法律程序 (不論該程序是在香港或其他地方提起)；

(b) 可導致該等物品被沒收或充公的法律程序 (不論該程序是在香港或其他地方提起)。

20. 取得在跨境運輸工具上的人的詳情的權力

(1) 獲授權人員可為了執行該人員在本條例之下的職能，要求跨境運輸工具的營運者 ——

(a) 向該人員提供附表 6 指明的、關於在該運輸工具上 (或將會在該運輸工具上) 的任何人的任何詳情；及

(b) 以該人員要求的方式，在該人員要求的合理時間內，提供該等詳情。

(2) 在本條中 ——

營運者 (operator) 就某跨境運輸工具而言，指 ——

(a) 該運輸工具的擁有人、租用人或租借人；

(b) 掌管該運輸工具的另一人；或

(c) 以擁有人、租用人、租借人或掌管該運輸工具的人的代理人身分，就該運輸工具行事的人。

21. 進入和搜查等的權力

(1) 如獲授權人員合理地懷疑，在任何處所、地方或運輸工

proceedings are instituted, the CBNIs may be detained until the proceedings have been concluded—

(a) proceedings instituted (whether in Hong Kong or elsewhere) against a person for an offence with which the CBNIs are connected;

(b) proceedings instituted (whether in Hong Kong or elsewhere) which may result in the forfeiture or confiscation of the CBNIs.

20. Power to obtain particulars of persons on cross-boundary conveyance

(1) An authorized officer may, for the purpose of performing the officer's functions under this Ordinance, require the operator of a cross-boundary conveyance—

(a) to give the officer any of the particulars specified in Schedule 6 about any person on board, or to be on board, the conveyance; and

(b) to give the particulars in the way and within a reasonable time required by the officer.

(2) In this section—

operator (營運者), in relation to a cross-boundary conveyance, means—

(a) the owner, charterer or hirer of the conveyance;

(b) another person in charge of the conveyance; or

(c) a person who, in relation to the conveyance, is acting as an agent of the owner, charterer, hirer or person in charge of the conveyance.

21. Powers of entry and search etc.

(1) An authorized officer may exercise any or all of the powers

具之上或之內，有與違反第 2 部相關的任何東西，該人員可行使第 (2) 款所指的任何或所有權力。

(2) 有關權力是 ——

(a) 在符合第 22 條的條文下，進入有關處所或地方，並搜尋有關東西；

(b) 凡有關獲授權人員獲賦權，進入該處所或地方 —— 破啟該處所或地方的任何外部或內部的門；

(c) 截停和登上運輸工具，並搜尋該東西；

(d) 檢查、檢取和扣留因行使 (a) 或 (c) 段所指的權力，而發現的任何東西；及

(e) 凡為了行使 (a)、(b)、(c) 或 (d) 段所指的權力，有合理需要使用任何武力 —— 使用有關武力。

22. 進入和搜查處所及地方受何限制

(1) 在符合第 (3) 款的條文下，獲授權人員除非在根據第 (2) 款發出的手令的權限下行事，否則不得根據第 21(2)(a) 條，進入和搜查任何處所或地方。

(2) 如裁判官基於一項經宣誓而作的告發而信納，有合理理由懷疑在任何處所或地方內，有與違反第 2 部相關的任何東西，該裁判官可發出手令，授權獲授權人員進入和搜查該處所或地方。

(3) 如獲授權人員在根據第 (2) 款發出的手令的權限下，進入任何處所或地方，該人員須應要求而向在該處所或地方內發現的人，出示該手令及身分證明，以供該人查閱。

under subsection (2) if the officer reasonably suspects that there is on or in any premises, place or conveyance anything connected with a contravention of Part 2.

(2) The powers are—

(a) subject to section 22, to enter the premises or place and search for the thing;

(b) to break open any outer or inner door of the premises or place that the authorized officer is empowered to enter;

(c) to stop and board a conveyance and search for the thing;

(d) to examine, seize and detain anything found as a result of the exercise of a power under paragraph (a) or (c); and

(e) to use any force reasonably necessary for exercising a power under paragraph (a), (b), (c) or (d).

22. Restrictions on entry and search of premises and place

(1) Subject to subsection (3), an authorized officer must not enter and search any premises or place under section 21(2)(a) except under the authority of a warrant issued under subsection (2).

(2) A magistrate may issue a warrant authorizing an authorized officer to enter and search any premises or place if the magistrate is satisfied by information on oath that there are reasonable grounds for suspecting that there is on the premises or in the place anything connected with a contravention of Part 2.

(3) If an authorized officer enters any premises or place under the authority of a warrant issued under subsection (2), the officer must, on request, produce the warrant and evidence of identity for inspection by a person found on the premises or in the place.

23. 關於現金類物品等的進一步權力

(1) 凡獲授權人員因行使第 16 或 21 條所指的權力，而發現任何現金類物品或該人員合理地懷疑與違反第 2 部相關的任何東西 (***被發現物件***)，則可就該被發現物件，行使第 (2) 款所指的任何或所有權力。

(2) 有關權力是 ——

(a) 凡有關獲授權人員合理地懷疑，另有任何其他東西是關乎被發現物件的 —— 要求交出該其他東西，並 (如交出) 予以檢查；

(b) 如為被發現物件製作複製本 (其形式屬可被帶走並是能夠在電腦上檢索出示或是可見及可閱讀者)，是合理地切實可行的 ——

(i) 製作上述形式的複製本，或要求交出上述形式的複製本；及

(ii) 帶走該複製本；及

(c) 凡為了行使 (a) 或 (b) 段所指的權力，有合理需要使用任何武力 —— 使用有關武力。

24. 關於不遵從獲授權人員的要求等的罪行

(1) 任何人 ——

(a) 在獲授權人員行使本部賦予該人員的權力而提出任何要求的情況下，不遵從該要求；或

(b) 故意抗拒或妨礙獲授權人員行使本部賦予該人員的權力，

即屬犯罪。

(2) 任何人犯第 (1) 款所訂罪行，一經定罪，可處第 3 級罰款及監禁 6 個月。

23. Further powers in relation to CBNIs etc.

(1) An authorized officer may exercise any or all of the powers under subsection (2) in relation to CBNIs, or anything the officer reasonably suspects to be connected with a contravention of Part 2, found as a result of the exercise of a power under section 16 or 21 (***found item***).

(2) The powers are—

(a) to require the production of any further thing that the authorized officer reasonably suspects to relate to the found item and, if produced, to examine the thing;

(b) if it is reasonably practicable to make a copy of the found item in a form in which it can be taken away and in which it is either capable of being retrieved on a computer or visible and legible—

(i) to make such a copy or require the provision of such a copy; and

(ii) to take away the copy; and

(c) to use any force reasonably necessary for exercising a power under paragraph (a) or (b).

24. Offences in relation to non-compliance with requirements of authorized officers etc.

(1) A person commits an offence if the person—

(a) fails to comply with a requirement of an authorized officer in the exercise of the officer's powers under this Part; or

(b) wilfully resists or obstructs an authorized officer in the exercise of the officer's powers under this Part.

(3) 被控犯第 (1)(a) 款所訂罪行的人，如證明在指稱的罪行發生時，自己對不遵從獲授權人員的要求，有合理辯解，即為免責辯護。

(4) 獲授權人員如合理地懷疑，任何東西與違反第 (1)(b) 款相關，可檢取和扣留該東西。

25. 拘捕及扣留

(1) 獲授權人員如合理地懷疑，某人已違反本條例，可無需手令而拘捕或扣留該人，以作進一步查訊。

(2) 獲授權人員在根據第 (1) 款拘捕某人後，須將該人帶往警署，以按照《警隊條例》(第 232 章) 處理。

(3) 然而，如需要作進一步查訊，獲授權人員可先將有關的人，帶往香港海關辦事處作進一步查訊，然後將該人帶往警署，以按照《警隊條例》(第 232 章) 處理。

(4) 凡任何人被拘補，不得扣留該人超過 48 小時 (自拘捕時起計) 而不予落案起訴並帶到裁判官席前應訊。

(5) 獲授權人員如拘捕任何人，可要求該人向該人員提供該人的姓名和出示身分證明。

(6) 如任何人強行抗拒或企圖逃避根據本條作出的拘捕，則獲授權人員可使用任何合理地需要的武力，以拘捕該人。

(2) A person who commits an offence under subsection (1) is liable on conviction to a fine at level 3 and to imprisonment for 6 months.

(3) It is a defence for a person charged under subsection (1)(a) if the person establishes that at the time of the alleged offence the person had a reasonable excuse for failing to comply with the requirement of the authorized officer.

(4) An authorized officer may seize and detain anything that the officer reasonably suspects to be connected with a contravention of subsection (1)(b).

25. Arrest and detention

(1) An authorized officer may without warrant arrest or detain for further inquiries a person whom the officer reasonably suspects of having contravened this Ordinance.

(2) An authorized officer who arrests a person under subsection (1) must take the person to a police station to be dealt with in accordance with the Police Force Ordinance (Cap. 232).

(3) However, if further inquiries are necessary, an authorized officer may first take the person to an office of the Customs and Excise Service for further inquiries and then to a police station to be dealt with in accordance with the Police Force Ordinance (Cap. 232).

(4) A person must not be detained for more than 48 hours from the time the person is arrested without being charged and brought before a magistrate.

(5) An authorized officer who arrests a person may require the person to give the person's name and to produce evidence of identity to the officer.

26. 處置被檢取和扣留的東西

就《刑事訴訟程序條例》(第 221 章) 第 102 條而言，根據本部檢取和扣留的東西，屬香港海關管有的財產。

27. 賠償

(1) 如有任何東西 (***遭檢取物件***) 根據本部檢取和扣留，則本條適用。

(2) 凡遭檢取物件的關係人向法院提出申請，法院如在考慮有關個案的整體情況後，認為命令特區政府向申請人支付賠償，屬適當之舉，則可作出該命令。

(3) 然而，法院只可在以下情況下，根據第 (2) 款作出命令 ——

(a) 在檢取和扣留遭檢取物件後，並無任何以下事件發生 ——

(i) 已就與該物件相關的罪行，針對某人提起法律程序 (不論該程序是在香港或其他地方提起)；

(ii) 已提起可導致該物件被沒收或充公的法律程序 (不論該程序是在香港或其他地方提起)；

(iii) 已有《聯合國 (反恐怖主義措施) 條例》(第 575 章) 第 6(1) 條所指的通知，指明該物件；及

(b) 法院信納 ——

(i) 某名與該物件的檢取或扣留有關的人，曾犯嚴重錯失；及

(ii) 有關申請人已由於該項檢取或扣留及第 (i) 節所述的錯失，而就該物件蒙受損失。

(6) If a person forcibly resists or attempts to evade arrest under this section, an authorized officer may use any force reasonably necessary to effect the arrest.

26. Disposal of things seized and detained

For the purposes of section 102 of the Criminal Procedure Ordinance (Cap. 221), a thing seized and detained under this Part is property in the possession of the Customs and Excise Service.

27. Compensation

(1) This section applies if anything (***seized item***) is seized and detained under this Part.

(2) The Court may, on an application made by an interested person in relation to a seized item, order compensation to be paid by the Government to the applicant if, having regard to all the circumstances of the case, it considers it appropriate to make the order.

(3) However, the Court may make an order under subsection (2) only if—

(a) since the seizure and detention of a seized item, none of the following events has happened—

(i) proceedings have been instituted (whether in Hong Kong or elsewhere) against a person for an offence with which the item is connected;

(ii) proceedings have been instituted (whether in Hong Kong or elsewhere) and may result in the forfeiture or confiscation of the item;

(iii) the item has been specified in a notice under section 6(1) of the United Nations (Anti-Terrorism Measures) Ordinance (Cap. 575); and

(b) it is satisfied that—

(4) 賠償的款額，須屬法院認為在有關個案的整體情況下屬公平的款額。

(5) 本條並不影響任何人可按普通法獲得的任何補救。

(6) 在本條中 ——

法院 (Court) 指原訟法庭；

關係人 (interested person) 就遭檢取物件而言，指 ——

(a) 如該物件是從某人處檢取的 —— 該人；

(b) 輸入或輸出該物件的人，或由他人代為輸入或輸出該物件的人；或

(c) 在其他方面對該物件有權益的人。

(i) there has been serious default on the part of a person concerned with the seizure or detention of the item; and

(ii) the applicant has, in consequence of the seizure or detention and the default mentioned in subparagraph (i), suffered loss in relation to the item.

(4) The amount of compensation is the amount that the Court considers just in all the circumstances of the case.

(5) This section does not affect any remedy available to a person at common law.

(6) In this section—

Court (法院) means the Court of First Instance;

interested person (關係人), in relation to a seized item, means—

(a) the person from whom it was seized;

(b) a person by whom or on whose behalf it was imported or exported; or

(c) a person who otherwise has an interest in it.

第 4 部

雜項條文

28. 豁免的權力

關長可在個別個案中，藉書面方式，豁免任何人，使其不受第 2 部條文的規定管限。行使上述權力的先決條件，是關長在顧及有關個案的整體情況下，信納 ——

(a) 該人遵守該規定，並非合理地切實可行；及

(b) 豁免該人使其不受該規定管限，屬合理之舉。

29. 委任獲授權人員和轉授職能的權力

(1) 關長可藉書面方式，委任公職人員，為施行本條例而擔任獲授權人員。

(2) 關長可藉書面方式，將其在本條例之下的任何職能 (第 (1) 款或第 7(4)(a)、12(4)(a) 或 33(1) 條之下的職能除外)，轉授予公職人員。

30. 董事、合夥人等的法律責任

(1) 如 ——

(a) 法人團體犯本條例所訂罪行，或任何人以並非法團的團體的成員的身分，犯本條例所訂罪行；及

(b) 該罪行經證明是在第 (2) 款指明的人 (***指明人士***) 的同意或縱容下犯的，或是可歸因於指明人士的疏忽的，

Part 4

Miscellaneous

28. Power to exempt

The Commissioner may, in writing, exempt a person from the requirement of a provision of Part 2 in a particular case if the Commissioner is satisfied that, having regard to all the circumstances of the case—

(a) it is not reasonably practicable for the person to comply with the requirement; and

(b) it is reasonable that the person should be exempted from the requirement.

29. Powers to appoint authorized officers and delegate functions

(1) The Commissioner may, in writing, appoint a public officer to be an authorized officer for the purposes of this Ordinance.

(2) The Commissioner may, in writing, delegate any of the Commissioner's functions under this Ordinance (other than under subsection (1) or section 7(4)(a), 12(4)(a) or 33(1)) to a public officer.

30. Liability of directors, partners, etc.

(1) If—

(a) an offence against this Ordinance is committed by a body corporate or by a person as a member of an unincorporated body; and

(b) it is proved that the offence has been committed with the consent or connivance of or is attributable to the

則該指明人士亦屬犯該罪行，並可據此予以起訴和處罰。

(2) 指明人士是在有關罪行發生時 ——

(a) 就法人團體所犯的罪行而言 —— 身為該法人團體的董事、秘書、主要人員或經理的人；

(b) 就並非法團的團體的成員所犯的罪行而言 —— 身為該團體的合夥人、幹事、成員或管理人的人；或

(c) 不論是 (a) 或 (b) 段所述的情況 —— 看來是以該段提述的任何一種身分行事的人。

31. 舉證責任

任何被控犯本條例所訂罪行的人，在以下情況下，須視作已證明需要就免責辯護而證明的事實 ——

(a) 有足夠證據，就該事實帶出爭論點；及

(b) 控方沒有提出足以排除合理疑點的相反證明。

32. 對獲授權人員的保障

(1) 凡獲授權人員 ——

(a) 在執行或看來是執行本條例之下的職能時；或

(b) 在行使或看來是行使本條例之下的權力時，

neglect of a person specified in subsection (2) (***specified person***),

the specified person also commits the offence and is liable to be proceeded against and punished accordingly.

(2) A specified person is a person who, at the time of the offence, was—

(a) for an offence committed by a body corporate—a director, secretary, principal officer or manager of the body corporate;

(b) for an offence committed by a member of an unincorporated body—a partner or office holder in, or a member or manager of, the body; or

(c) in either case mentioned in paragraph (a) or (b)—purporting to act in the capacity of a person referred to in that paragraph.

31. Burden of proof

A person charged with an offence against this Ordinance is taken to have established a fact that needs to be established for a defence if—

(a) there is sufficient evidence to raise an issue with respect to the fact; and

(b) the contrary is not proved by the prosecution beyond reasonable doubt.

32. Protection of authorized officer

(1) An authorized officer is not civilly liable for an act done or omitted to be done by the officer in good faith—

(a) in performing or purportedly performing a function under this Ordinance; or

真誠地作出或沒有作出任何作為，該人員無須為該作為或不作為，承擔民事法律責任。

(2) 第 (1) 款不影響特區政府為上述作為或不作為而承擔的法律責任。

33. 修訂附表

(1) 關長可藉憲報公告，修訂附表 1、2、3 及 6。

(2) 保安局局長可藉憲報公告，修訂附表 4。

(3) 立法會可藉決議，更改附表 5 第 3 欄就罪行而指明的款額。

(b) in exercising or purportedly exercising a power under this Ordinance.

(2) Subsection (1) does not affect any liability of the Government for the act or omission.

33. Amendment of Schedules

(1) The Commissioner may, by notice published in the Gazette, amend Schedules 1, 2, 3 and 6.

(2) The Secretary for Security may, by notice published in the Gazette, amend Schedule 4.

(3) The Legislative Council may, by resolution, vary the amount specified in column 3 of Schedule 5 for an offence.

附表 1

[第 2(1) 及 33(1) 條]

指明管制站

1. 羅湖管制站
2. *(由 2025 年第 20 號法律公告廢除)*
3. 文錦渡邊境管制站
4. 沙頭角邊境管制站
5. 港澳碼頭
6. 中國客運碼頭
7. 落馬洲邊境管制站
8. 香港國際機場
9. *(由 2025 年第 20 號法律公告廢除)*
10. 深圳灣口岸港方口岸區
11. 落馬洲支線管制站
12. 啟德郵輪碼頭
13. 海運碼頭 *(由 2018 年第 53 號法律公告增補)*

Schedule 1

[ss. 2(1) & 33(1)]

Specified Control Points

1. Lo Wu Control Point
2. *(Repealed L.N. 20 of 2025)*
3. Man Kam To Boundary Control Point
4. Sha Tau Kok Boundary Control Point
5. Hong Kong-Macao Ferry Terminal *(Amended 31 of 2025 s. 201)*
6. China Ferry Terminal
7. Lok Ma Chau Boundary Control Point
8. Hong Kong International Airport
9. *(Repealed L.N. 20 of 2025)*
10. Shenzhen Bay Port Hong Kong Port Area
11. Lok Ma Chau Spur Line Control Point
12. Kai Tak Cruise Terminal
13. Ocean Terminal *(Added L.N. 53 of 2018)*

14. 廣深港高速鐵路西九龍站 (西九龍站內地口岸區除外) *(由 2018 年第 111 號法律公告增補)*

15. 港珠澳大橋香港口岸 *(由 2018 年第 199 號法律公告增補)*

16. 香園圍邊境管制站 *(由 2020 年第 156 號法律公告增補)*

17. 皇崗口岸港方口岸區 *(由 2026 年第 95 號法律公告增補)*

14. West Kowloon Station of the Guangzhou-Shenzhen-Hong Kong Express Rail Link (other than the West Kowloon Station Mainland Port Area) *(Added L.N. 111 of 2018)*

15. Hong Kong-Zhuhai-Macao Bridge Hong Kong Port *(Added L.N. 199 of 2018)*

16. Heung Yuen Wai Boundary Control Point *(Added L.N. 156 of 2020)*

17. Huanggang Port Hong Kong Port Area *(Added L.N. 95 of 2026)*

附表 2

[第 4(4)、6(3) 及 33(1) 條]

須於申報中，就個人管有的現金類物品的輸入或輸出提供的資料

第 1 部

釋義

1. 釋義

在本附表中 ——

個人資料 (personal information) 就某人而言，指該人的以下詳情 ——

(a) 全名；

(b) 身分證號碼，或旅行證件號碼及發出地方；

(c) 國籍；

(d) 出生日期及出生地點；

(e) 永久地址 (不論是否在香港境內)；及

(f) 如永久地址並非在香港境內——身在香港時的地址。

第 2 部

資料

1. 管有現金類物品的人 (***旅客***) 的個人資料。

Schedule 2

[ss. 4(4), 6(3) & 33(1)]

Information to be Provided in Declaration for Import or Export of CBNIs in Possession of Individuals

Part 1

Interpretation

1. Interpretation

In this Schedule—

personal information (個人資料), in relation to a person, means the following particulars of the person—

(a) full name;

(b) number of identity card, or number and place of issue of travel document;

(c) nationality;

(d) date and place of birth;

(e) permanent address (whether in Hong Kong or not); and

(f) if the permanent address is not in Hong Kong—the address while in Hong Kong.

Part 2

Information

1. The personal information of the person who is in possession of the

2. 如旅客乘搭跨境運輸工具抵達香港，或即將乘搭跨境運輸工具離開香港 —— 識別該運輸工具的詳情 (例如飛機的航班編號、車輛的登記編號或船隻的名稱)。

3. 現金類物品的種類及其價值。

4. 旅客是抵達香港，抑或是即將離開香港。

5. 如旅客是抵達香港 ——

(a) 抵達香港的日期；及

(b) 現金類物品從何地輸入。

6. 如旅客是即將離開香港 ——

(a) 離開香港的日期；及

(b) 現金類物品輸出往何地。

7. 如旅客並非現金類物品的擁有人 —— 現金類物品的擁有人的姓名或名稱，以及地址。

8. 如申報是由並非旅客的人作出的 —— 該人的個人資料。

CBNIs (***traveller***).

2. If the traveller is arriving in or about to leave Hong Kong on a cross-boundary conveyance, the particulars for identifying the conveyance (such as the flight number of an aircraft, the registration number of a vehicle or the name of a vessel).

3. The type of the CBNIs and their value.

4. Whether the traveller is arriving in or about to leave Hong Kong.

5. If the traveller is arriving in Hong Kong—

(a) the date of arrival in Hong Kong; and

(b) the place from which the CBNIs were imported.

6. If the traveller is about to leave Hong Kong—

(a) the date of departure from Hong Kong; and

(b) the place to which the CBNIs are to be exported.

7. If the traveller is not the owner of the CBNIs—the name and address of the owner of the CBNIs.

8. If the declaration is made by a person who is not the traveller—the personal information of the person.

附表 3

[第 11(1) 及 (2) 及 33(1) 條]

須於申報中，就在其他情況下輸入或輸出現金類物品提供的資料

第 1 部

釋義

1. 釋義

在本附表中 ——

基本資料 (basic information) ——

(a) 就自然人而言，指該人的以下詳情 ——

(i) 全名；

(ii) 身分證號碼，或旅行證件號碼及發出地方；

(iii) 國籍；

(iv) 出生日期及出生地點；及

(v) 永久地址 (不論是否在香港境內)；或

(b) 就並非自然人的實體而言，指該實體的以下詳情 ——

(i) 名稱；

(ii) 如該實體已根據《商業登記條例》(第 310 章) 登記 —— 商業登記號碼；及

(iii) 業務地址。

Schedule 3

[ss. 11(1) & (2) & 33(1)]

Information to be Provided in Declaration for Other Import or Export of CBNIs

Part 1

Interpretation

1. Interpretation

In this Schedule—

basic information (基本資料)—

(a) in relation to a natural person, means the following particulars of the person—

(i) full name;

(ii) number of identity card, or number and place of issue of travel document;

(iii) nationality;

(iv) date and place of birth; and

(v) permanent address (whether in Hong Kong or not); or

(b) in relation to an entity that is not a natural person, means the following particulars of the entity—

(i) name;

第 2 部

資料

1. 以下人士的基本資料 ——
   (a) 如現金類物品將要由並非第 10 條所指的承運人的人輸入或輸出 —— 該人；或
   (b) 如現金類物品將要由第 10 條所指的承運人，為第 10 條所指的客户輸入或輸出 —— 該客户。

2. 識別將要輸入或輸出現金類物品的跨境運輸工具的詳情 (例如飛機的航班編號、車輛的登記編號或船隻的名稱)。

3. 現金類物品的種類及其價值。

4. 現金類物品是將要被輸入，抑或是將要被輸出。

5. 如現金類物品將要被輸入 ——
   (a) 輸入的日期；及
   (b) 從何地輸入。

6. 如現金類物品將要被輸出 ——
   (a) 輸出的日期；及
   (b) 輸出往何地。

   (ii) if it is registered under the Business Registration Ordinance (Cap. 310)—business registration number; and
   (iii) business address.

Part 2

Information

1. The basic information of the following person—
   (a) if the CBNIs are to be imported or exported by a person who is not a carrier within the meaning of section 10—the person; or
   (b) if the CBNIs are to be imported or exported by a carrier, for a customer, within the meaning of section 10—the customer.

2. The particulars for identifying the cross-boundary conveyance on which the CBNIs are to be imported or exported (such as the flight number of an aircraft, the registration number of a vehicle or the name of a vessel).

3. The type of the CBNIs and their value.

4. Whether the CBNIs are to be imported or exported.

5. If the CBNIs are to be imported—
   (a) the date of import; and
   (b) the place from which they are to be imported.

7. (如適用的話) 現金類物品的收受人的姓名或名稱及地址。

8. (如適用的話) 識別現金類物品屬於哪一批次貨物中輸入或輸出的詳情 (例如貨單編號)。

6. If the CBNIs are to be exported—

(a) the date of export; and

(b) the place to which they are to be exported.

7. If applicable, the name and address of the recipient of the CBNIs.

8. If applicable, the particulars for identifying the consignment in which the CBNIs are to be imported or exported (such as the waybill number).

附表 4

[第 2(3) 及 33(2) 條]

大量現金類物品

$120,000

Schedule 4

[ss. 2(3) & 33(2)]

Large Quantity of CBNIs

$120,000

附表 5

[第 13(1) 及 33(3) 條]

可給予第 13(1) 條所指的書面通知的罪行

第 1 欄	第 2 欄	第 3 欄
項	罪行	款額
1.	第 4(5) 條所訂罪行	$2,000
2.	第 4(6) 條所訂罪行	$2,000
3.	第 4(7) 條所訂罪行	$2,000
4.	第 5(3) 條所訂罪行	$2,000
5.	第 5(4) 條所訂罪行	$2,000
6.	第 5(5) 條所訂罪行	$2,000
7.	第 6(4) 條所訂罪行	$2,000
8.	第 6(5) 條所訂罪行	$2,000

Schedule 5

[ss. 13(1) & 33(3)]

Offences for which Written Notice under Section 13(1) may be Given

Column 1	Column 2	Column 3
Item	Offence	Amount
1.	An offence under section 4(5)	$2,000
2.	An offence under section 4(6)	$2,000
3.	An offence under section 4(7)	$2,000
4.	An offence under section 5(3)	$2,000
5.	An offence under section 5(4)	$2,000
6.	An offence under section 5(5)	$2,000
7.	An offence under section 6(4)	$2,000
8.	An offence under section 6(5)	$2,000

附表 6

[第 20(1) 及 33(1) 條]

可根據第 20(1) 條要求提供的、在跨境運輸工具上的人的詳情

1. 全名
2. 身分證號碼，或旅行證件號碼及發出地方
3. 國籍
4. 出生日期及出生地點
5. 最初出發地

Schedule 6

[ss. 20(1) & 33(1)]

Particulars of Persons on Cross-boundary Conveyance that may be Required under Section 20(1)

1. Full name
2. Number of identity card, or number and place of issue of travel document
3. Nationality
4. Date and place of birth
5. Place of original embarkation